

CONTENTS

PAGE

SECTION 1

RECRUITMENT

1.	Recruitment Rules	...	...	...	1
2.	Methods of Recruitment	...	...	...	1
3.	Composite method of recruitment	...	...	...	2
4.	Consultation with UPSC	...	...	...	3
5.	Direct recruitment to another post in same or different department	...	...	...	3
6.	Probation	...	...	...	3
7.	Mandatory Induction Training	...	...	...	5
	<i>Frequently Asked Questions</i>	...	...	...	5

SECTION 2

RESERVATIONS AND CONCESSIONS IN APPOINTMENTS

1.	Reservation for SCs/STs	...	...	...	6
2.	Reservations for Socially and Educationally Backward Classes (OBCs)	...	...	...	11
3.	Reservations for Economically Weaker Sections (EWSs)	...	...	...	13
4.	Post-Based Reservation Rosters	...	...	...	14
5.	Reservations for Persons with Benchmark Disabilities	...	...	...	19
6.	Reservations for Meritorious Sportspersons	...	...	...	27
7.	Reservations for Ex-Servicemen...	...	...	...	28
8.	Compassionate Appointments of Dependants	...	...	...	31
	<i>Frequently Asked Questions</i>	...	...	...	34

SECTION 3

CONFIRMATION

35

SECTION 4

CONDUCT RULES

1.	Do's and Don'ts — for you	...	...	...	36
2.	Acts, conduct and commissions which amount to misconduct	...	...	...	40
3.	Activities requiring permission / sanction	...	...	...	41
4.	Activities not requiring permission / sanction...	...	...	...	44
5.	Unauthorized absence — Break in service	...	...	...	45
6.	Government servants and politics	...	...	...	46
7.	Property Transactions	...	...	...	48
8.	Acceptance of Gifts	...	...	...	49

				PAGE
9.	Restrictions regarding marriage	...	...	50
10.	Dowry	...	...	51
11.	Sexual Harassment of working women	...	...	52
12.	Assistance to Government servants in legal proceedings	...	...	57
13.	Annual Return of Assets and Liabilities	...	...	58
	<i>Frequently Asked Questions</i>	...	...	60

SECTION 5

DISCIPLINE RULES

1.	Warning / Admonition / Reprimand	...	...	61
2.	Disciplinary Proceedings	...	...	61
3.	Appeal, Revision and Review	...	...	69
4.	Suspension and Subsistence Allowance	...	...	71
5.	Reinstatement	...	...	80
6.	Proceedings after Retirement	...	...	83
7.	Central Administrative Tribunal	...	...	84
	<i>Frequently Asked Questions</i>	...	...	87

SECTION 6

DEPUTATION AND FOREIGN SERVICE

1.	Foreign Service — General Principles	...	...	88
2.	Leave Salary Contribution	...	...	89
3.	Pension Contribution	...	...	90
4.	Deputation (Duty) Allowance	...	...	91
	<i>Frequently Asked Questions</i>	...	...	101

SECTION 7

SENIORITY, DPC AND PROMOTION

1.	Seniority	...	...	102
2.	Departmental Promotion Committee (DPC)	...	...	107
3.	Regular Promotions	...	...	111
4.	<i>Ad hoc</i> Promotions	...	...	113
5.	Pro forma Promotions	...	...	114
6.	Declining of Promotion	...	...	115
7.	Annual Performance Assessment Reports (APARs)	...	...	115
8.	Revised procedure from 1-4-2009	...	...	120
9.	Reflection of work done through Government e-Marketplace (GeM)	...	...	121

	PAGE
10. Instructions / Guidelines relating to filling up the integrity column of Annual Performance Assessment Reports ...	122
11. Letters of Appreciation ...	123
<i>Frequently Asked Questions</i> ...	124

SECTION 8

PAY

1. Standard Pay Scales ...	125
2. Pay Matrix ...	125
3. Stepping up of pay to remove anomalies ...	133
4. Increments ...	135
5. Advance Increments ...	137
6. Lumpsum Incentive for acquiring higher qualifications ...	139
7. Attachment for debt and maintenance ...	140
<i>Frequently Asked Questions</i> ...	142

SECTION 9

ALLOWANCES, FEE AND HONORARIUM

1. Dearness Allowance ...	143
2. HRA ...	145
3. List of Classified Cities for HRA... ..	148
4. List of stations where HRA is admissible from 1-9-2008 ...	150
5. Transport Allowance ...	150
6. Special Allowance for Child Care for Women with Disabilities	153
7. Cycle Allowance ...	153
8. Dress Allowance ...	154
9. Overtime Allowance ...	155
10. Fee and Honorarium ...	158
11. Non-Practising Allowance ...	164
12. Conveyance Hire for local journeys ...	165
13. Conveyance Allowance ...	166
14. Conveyance Allowance to Medical Officers ...	167
15. Extra Work Allowance ...	170
16. Split Duty Allowance ...	171
17. Cash Handling Allowance to Cashiers ...	171
18. Night Duty Allowance ...	172
19. Compensatory Allowances ...	173
<i>Frequently Asked Questions</i> ...	182

SECTION 10

GOVERNMENT QUARTERS

1.	Allotment of Quarters	...	...	184
2.	Quarters to house-owning employees	...	...	187
3.	Separate Pool for certain categories of employees	...	...	187
4.	Allotment of alternate accommodation	...	...	189
5.	Conditions for Regularization	...	...	191
6.	Surrender of an allotment	...	...	192
7.	<i>Ad hoc</i> allotment to handicapped employees...			192
8.	Out-of-turn allotment on medical grounds	...	...	193
9.	Reservation of Quarters for SC/ST Employees...			193
10.	Retention of Accommodation	...	...	194
11.	Compensation in lieu of rent-free accommodation	...	...	198
12.	Persons to reside with the allottee	...	...	198
13.	Subletting	...	...	198
14.	Change of Accommodation	...	...	200
15.	Miscellaneous	...	...	201
16.	Licence Fee	...	...	202
	<i>Frequently Asked Questions</i>	...	...	204

SECTION 11

PROVIDENT FUNDS

1.	General Provident Fund	...	...	205
2.	Advances from GPF	...	...	206
3.	Withdrawals from GPF	...	...	208
4.	Contributory Provident Fund	...	...	210
5.	Final payment of accumulations in PF	...	...	210
6.	Deposit-linked Insurance Scheme	...	...	213
	<i>Frequently Asked Questions</i>	...	...	214

SECTION 12

LEAVE RULES

1.	General Principles	...	...	215
2.	Earned Leave	...	...	217
3.	Half Pay Leave	...	...	219
4.	Commuted Leave	...	...	220
5.	Leave Not Due	...	...	220
6.	Extraordinary Leave	...	...	221

	PAGE
7. Leave Entitlements for Vacation Department Staff ...	222
8. Maternity Leave ...	223
9. Special Maternity Leave ...	224
10. Paternity Leave ...	224
11. Leave to female Government servant on adoption of child	225
12. Child Care Leave ...	226
13. Work Related Illness and Injury Leave (WRIL)...	227
14. Special Leave connected with inquiry on Sexual Harassment	227
15. Study Leave ...	228
16. <i>Ad hoc</i> Employees ...	230
17. Leave Salary ...	231
18. Officers appointed on contract ...	231
19. Casual Leave ...	231
20. Special Casual Leave ...	233
<i>Frequently Asked Questions</i> ...	238

SECTION 13

LEAVE TRAVEL CONCESSION

1. Eligibility ...	239
2. Salient points ...	241
3. Types of LTC ...	242
4. Block years and carry forward of LTC ...	243
5. Entitlement ...	244
6. Special Relaxation to visit NER, J&K, Ladakh and A&N ...	245
7. Advance ...	247
8. Reimbursement ...	248
9. LTC for Escort ...	250
10. Misuse of LTC ...	251
11. Encashment of EL during LTC ...	251
12. Special Concession for those posted in N-E. Region, etc. ...	252
<i>Frequently Asked Questions</i> ...	253

SECTION 14

JOINING TIME

1. When Admissible ...	254
2. Amount of Joining Time ...	254
3. Calculation from old Headquarters only ...	255
4. Extension of JT ...	256

			PAGE
5.	Unavailed JT to be credited to the EL	...	256
6.	Combination with leave / vacation	...	256
7.	Second transfer while in transit ...	...	256
8.	JT Pay and Reckoning JT for increment	...	256
9.	Miscellaneous	...	257
	<i>Frequently Asked Questions</i>	...	258

SECTION 15

TRAVELLING ALLOWANCE

1.	Pay level of Government servants	...	259
2.	Daily Allowance	...	259
3.	T.A. on Tour	...	262
4.	Journeys by Air	...	267
5.	Journeys by Sea / River Steamer...	...	268
6.	T.A. for local journeys	...	269
7.	Time-limit for submission of claims for Travelling Allowances		270
8.	T.A. when deputed for training ...	...	271
9.	T.A. on Temporary Transfer	...	272
10.	T.A. on Transfer	...	273
11.	T.A. on Retirement	...	278
12.	T.A. to the family of a deceased employee	...	280
13.	Advance of T.A. on Tour	...	281
14.	Advance of T.A. on Transfer	...	282
	<i>Frequently Asked Questions</i>	...	282

SECTION 16

CENTRAL GOVERNMENT HEALTH SCHEME

1.	General Provisions	...	283
2.	Contributions	...	288
3.	Medical Advance	...	288
4.	Pensioners / Family Pensioners	...	289
5.	When family alone can avail the facilities	...	291
6.	Facilities available	...	291
7.	Hospital accommodation / Free diet	...	295
8.	Guidelines for settlement of medical claims of pensioners and others	...	302
9.	Check-list of documents for the cases requiring relaxation	...	308

	PAGE
10. Guidelines for issue of medicines to CGHS beneficiaries from CGHS Wellness Centres	309
11. Special provisions to CGHS beneficiaries aged 80 years and above	310
12. Relaxation of consultation norms in respect of CGHS beneficiaries aged 75 years and above	311
13. Guidelines to employees (serving/retired) covered under New Pension Scheme	312
14. Treatment undertaken at private non-empanelled hospital, in case of emergency	312
<i>Frequently Asked Questions</i>	313

SECTION 17

MEDICAL ATTENDANCE RULES

1. General Scope	314
2. Authorized Medical Attendants	317
3. Recognized Hospitals	318
4. Concessions for Family	319
5. Guidelines	321
6. Medical Advance	323
7. T.A. for medical attendance and treatment	325
8. Relaxation of Rules	326
9. Treatment outside India	327
10. Medical claims — Some useful tips	327
<i>Frequently Asked Questions</i>	328

SECTION 18

CHILDREN'S EDUCATION ALLOWANCE

1. General Conditions	329
2. Hostel Subsidy	332
3. Journey fare for children studying at outstations	333
<i>Frequently Asked Questions</i>	334

SECTION 19

ADVANCES

1. Interest-free and Interest-bearing advances	335
2. Personal Computer Advance	335
3. House Building Advance	336
<i>Frequently Asked Questions</i>	345

SECTION 20

MODIFIED ASSURED CAREER PROGRESSION SCHEME

Modified Assured Career Progression Scheme (MACPS) ...	346
<i>Frequently Asked Question</i> ...	354

SECTION 21

CONCESSIONS WHEN POSTED TO N-E. REGION, ETC.

1. T.A. and Joining Time ...	355
2. Leave Travel Concession ...	357
3. Tenure ...	357
4. Weightage for promotion, etc. ...	358
5. Children's Education Allowance / Hostel Subsidy ...	358
6. Benefit of Two HRAs ...	358
7. Retention of Quarters / Telephone ...	359
8. Special Allowances ...	360
<i>Frequently Asked Questions</i> ...	360

SECTION 22

GFR, PROCUREMENT AND GOVERNMENT e-MARKETPLACE

1. Definition of Goods ...	361
2. Authorities competent to make procurements ...	362
3. Modes of Procurement ...	362
4. Government e-Marketplace (GeM) ...	364
5. Registration of Suppliers on GeM portal ...	364
6. Purchase of goods by obtaining bids ...	365
7. Advance payment to supplier ...	365
8. Part payment to suppliers ...	365
9. Code of Integrity ...	366
10. Definition of Consulting Services ...	366
11. Identification of sources and award of Contract ...	367
12. Definition of Non-Consulting Service ...	367
13. Procurement process ...	367
14. Payment Procedure in GeM ...	367

SECTION 23

QUITTING SERVICE — OTHER THAN RETIREMENT

1. Voluntary Retirement ...	368
-----------------------------	-----

	PAGE
2. Premature Retirement	369
3. Retirement on Medical Grounds	370
4. Absorption in ABs / PSUs, etc.	371
5. Missing employees	373
6. Permanent transfer to and from Central Autonomous / Statutory Bodies — Counting of past service for pension ...	374
7. Absorption in Public Sector Undertakings / Autonomous Bodies under the State Governments / Union Territories ...	376
8. Pensionary terms for Central Government employees absorbed consequent on conversion of Departments into Autonomous Bodies or a PSU	377
9. Extraordinary Pension	379
10. Resignation	383
11. Termination of Temporary Service	386
12. Removal / Dismissal	387
<i>Frequently Asked Questions</i>	388

SECTION 24

RETIREMENT ON SUPERANNUATION

1. Timely payment of retirement benefits — your duties ...	389
2. General Provisions	390
3. Qualifying Service	392
4. Counting of previous Civil / Military service for pension on re-employment	394
5. Emoluments and Average Emoluments	395
6. Classes of Pension	397
7. Calculation of Pension	398
8. Preparation of Pension Papers	399
9. Gratuity	400
10. Authorization of Pension and Gratuity	404
11. Payment of Pension	405
12. Commutation of Pension	406
13. Encashment of Leave	410
14. Dearness Relief to Pensioners / Family Pensioners ...	413
15. Nomination for payment of arrears of pension ...	414
16. Family Pension	414
17. Authorization of family pension	420
18. Entitlements of temporary employee	421
19. Medical Facilities to Pensioners / Family Pensioners ...	421
20. Pension through Public Sector Banks / Post Office Savings Bank	422
<i>Frequently Asked Questions</i>	431

SECTION 25

NATIONAL PENSION SYSTEM

1.	Implementation	...	...	...	432
2.	Registration and Emoluments	...	...	...	433
3.	Contribution	...	...	...	434
4.	Option to avail benefits	...	...	...	435
5.	Benefits on Retirement	...	...	...	435
6.	Effect of resignation / absorption / dismissal	...	...	...	436
7.	Effect of disciplinary or judicial proceedings	...	...	...	437
8.	Entitlement for family on death of a Subscriber	...	...	...	438
9.	Benefits to the families of Government servants who go missing during service	...	...	...	438
10.	Partial Withdrawal	...	...	...	439
11.	Exit / Withdrawal	...	...	...	440
12.	Payment of Gratuity under NPS Rules	...	...	...	441
	<i>Frequently Asked Questions</i>	...	...	...	444

SECTION 26

OTHER SERVICE MATTERS

1.	Service Book	...	...	...	445
2.	Verification of Services	...	...	...	448
3.	Date of Birth and its subsequent alteration	...	...	...	449
4.	Change of Name	...	...	...	450
5.	Forwarding of applications for other employment	...	...	...	450
6.	Petitions to President	...	...	...	453
7.	Representations from Government servants on service matters	...	...	...	455
8.	Casual Labour	...	...	...	456
9.	Bonus	...	...	...	458
10.	Both husband and wife are Central Government servants-What if ?	...	...	...	459
11.	Posting of husband and wife at the same station	...	...	...	461
12.	Posting of Government employees who have differently abled dependants	...	...	...	463
13.	Incentives for Hindi	...	...	...	463
14.	N.O.C. for Passport	...	...	...	470
15.	Staff Associations	...	...	...	472
16.	Use of Staff car for official purposes	...	...	...	479
17.	Use of Staff car for private purposes	...	...	...	480
18.	Holidays	...	...	...	481

19.	Stipend and training expenses not to be recovered when relieved to take up new appointment	...	...	483
20.	Commercial Employment after Retirement	...	...	484
21.	<i>Ex gratia</i> Pension / Family Pension to CPF Retirees	...	...	484
	<i>Frequently Asked Questions</i>	...	...	486

SECTION 27

INCOME TAX

1.	Income from Salary	...	...	487
2.	Income from house property	...	...	496
3.	When salary is received in arrears	...	...	497
4.	Filing of Income Tax Returns	...	...	498
	<i>Frequently Asked Questions</i>	...	...	498

SECTION 28

WELFARE MEASURES

1.	Immediate relief to the family of an employee who dies while in service	...	...	499
2.	Group Insurance Scheme, 1980	...	...	499
3.	Illustration	...	...	504
4.	<i>Ex gratia</i> lumpsum compensation to families of Central Government Civilian employees who die in harness	...	...	505
	<i>Frequently Asked Questions</i>	...	...	507

SECTION 29

POSTAL TARIFF AND SAVINGS SCHEMES

508

SECTION 30

ILLUSTRATIONS

1.	Deputation and Foreign Service...	...	...	511
2.	Pay	...	...	513
3.	Provident Funds	...	...	516
4.	Leave Rules	...	...	517
5.	Joining Time	...	...	520
6.	Travelling Allowance	...	...	522
7.	Advances	...	...	526
8.	MACP Scheme	...	...	527
9.	Retirement on Superannuation	...	...	529
10.	National Pension System	...	...	535
11.	Income Tax	...	...	536

SWAMY'S PERSONAL ORGANIZER

539

1. Recruitment

1. Recruitment Rules

[Guidelines on RRs — OM, dated 6-3-2013]

Recruitment Rules are rules notified under proviso to Article 309 or any specific statutes for post(s) prescribing the method of recruitment and eligibility conditions. It contains a notification part having substantive rules and a schedule part. Recruitment Rules are subordinate legislation and so, they are statutory in nature. Recruitment Rules for Group 'A' and 'B' posts / services are amended by the administrative Ministry / Department in consultation with the Department of Personnel and Training, Union Public Service Commission and the Ministry of Law (Legislative Department) and approval of competent authority in the Ministry / Department to be obtained.

Administrative Ministries / Departments are empowered to frame / amend the Recruitment Rules in respect of Group 'C' posts keeping in view the guidelines / Model Recruitment Rules issued by this Department on various aspects. In case of deviation from existing guidelines / Model Recruitment Rules, the concurrence of Department of Personnel and Training is to be obtained.

The minimum educational qualifications and experience required for direct recruitment may be indicated as precisely as possible and if necessary into two parts, viz., "Essential Qualifications" and "Desirable Qualifications" taking into account the pay level and the nature of duties, and the provisions in the approved Recruitment Rules for similar higher and lower posts in the same hierarchy.

2. Methods of Recruitment

The different methods of recruitment are:

- | | |
|------------------------|-------------------------|
| (a) Direct Recruitment | (b) Promotion |
| (c) Deputation | (d) Absorption |
| (e) Re-employment | (f) Short-term contract |

Direct recruitment is the recruitment which is open to all candidates, eligible as per the provisions regarding age, educational qualification / experience etc., as prescribed in Recruitment Rules.

Promotion is method of recruitment from feeder grade post(s) to higher post in the hierarchy as per the provisions of the Recruitment Rules.

If promotion is kept as a method of recruitment, it is also necessary to lay down the number of years of qualifying service before the persons in the field become eligible for promotion. Only regular, and not *ad hoc*, period of service is taken into account for purposes of computing this service.

Deputation is a method of recruitment where officers of Central Government Departments or State / UT Governments from outside are appointed to post(s) in Central Government for a limited period, by the end of which they will have to return to their parent cadres. In case of isolated post, it is desirable to keep the method of recruitment of deputation / short term contract as otherwise the incumbents of such posts, if directly recruited, will not have any avenue of promotion / career progression.

Short-term contract is also a form of deputation where officers from non-Government bodies e.g. universities, research institutions, public sector undertakings for teaching, research, scientific and technical post(s) can come to Central Government posts.

Absorption and deputation are not same. There is a substantial difference between absorption and deputation. The officer, who initially comes on deputation, may be permanently absorbed in the post / grade if recruitment rules prescribe for absorption as mode of recruitment. Such absorption can be effected only in the case of officers who are on deputation from the Central / State Government.

Re-employment.— Armed Forces personnel, including those in the Military, Naval and Air Forces, retire at younger ages compared to other Government employees, as their duties are physically demanding. When they retire, usually between the ages of 35 and 54 depending on their rank, most ex-servicemen require assistance for resettlement. They need a second career because they are still young and active, and their responsibilities and obligations are at their peak when they are compulsorily retired. Considering their dedicated service to the country's safety and security, it is a national obligation to provide necessary facilities for their resettlement. To address this, the Central Government has introduced the "Ex-Servicemen (Re-employment in Central Civil Services and Posts) Rules." The recruitment rules regulating the recruitment of persons to Group-C and MTS posts and services under the Central Government shall be subject to the provisions of these rules and shall be construed accordingly.

3. Composite method of recruitment

In cases where the field of promotion or feeder grade consists of only one post, the method of recruitment by "deputation (including short-term contract) / promotion" is prescribed so that the eligible departmental officer is considered along with outsiders. If the departmental candidate is selected for appointment to the post, it is to be treated as having been filled by promotion; otherwise, the post is to be filled by deputation / short-term

contract for the prescribed period of deputation / short-term contract at the end of which the departmental officer will again be afforded an opportunity to be considered for appointment to the post.

The field for deputation / short-term contract / absorption should, as far as possible, consist of officers holding analogous posts on regular basis but may be widened to include officers working in the next lower grade also with the qualifying service on regular basis normally prescribed for promotion.

4. Consultation with UPSC

UPSC is required to be consulted in case of recruitment to all Central Civil Services and Central Civil Posts. Exemption from consultation with UPSC is governed by UPSC (Exemption from Consultation) Regulations, 1958, as amended from time to time.

5. Direct recruitment to another post in same or different department

If a Government servant is appointed to another post by direct recruitment either in the same department or a different department, it may be necessary to consider him for confirmation in the new post in which he has been appointed by direct recruitment irrespective of the fact that the officer was holding the earlier post on a substantive basis. Confirmation in the new entry grade becomes necessary because the new post may not be in the same line or discipline and the job requirements may be quite different from the old post in which he has been confirmed.

6. Probation

A person is appointed on probation to assess their suitability for the job. Probation is not just a formality and does not require a formal declaration. The Appointing Authority can declare successful completion, extend the probation period, or terminate the services based on performance evaluation.

Probation is used for direct recruitment, promotion, or re-employment before superannuation. It should not be excessively prolonged. The power to discharge probationers should be actively used to avoid later termination.

Besides passing exams, the focus should be on evaluating the probationer's outlook, character, and aptitude for the job before confirming their appointment.

During probation, the probationer should work under multiple officers, and their performance should be assessed by each one. Separate probation reports, distinct from regular Annual Performance Appraisal Reports (APARs), should be used for this purpose.

Probation should not be extended for more than a year, except for exceptional reasons, and should not exceed double the normal period.

If a probationer is not progressing satisfactorily, they should be informed of their shortcomings and given an opportunity to improve. Written warning should be given, and discharge should only be considered if there is no substantial improvement.

The Government may require probationers to undergo training, instructions, exams and tests during their probation period. This is a condition for satisfactory completion of probation, including an examination in Hindi, if necessary.

PERIOD OF PROBATION

The period of probation is prescribed for different posts / services in Central Government on the following lines:

Sl. No.	Method of appointment	Period of Probation
---------	-----------------------	---------------------

PROMOTION

1.	Promotion from one grade to another but within the same group of posts, e.g. from Group 'C' to Group 'C'	No probation.
2.	Promotion from one Group to another, e.g. Group 'B' to Group 'A'	The period of probation prescribed for the direct recruitment to the higher post. If no period is prescribed, then it should be 2 years.

DIRECT RECRUITMENT

3.	(i) For direct recruitment to posts except Clause (ii) below	2 years
	(ii) For direct recruitment to posts carrying a Grade Pay of ₹ 7,600 or above or to the posts to which the maximum age-limit is 35 years or above and where no training is involved	1 year
	NOTE.— Training includes 'on the job' or 'Institution training'	
4.	Officers re-employed before the age of superannuation	2 years

Sl. No.	Method of appointment	Period of Probation
5.	Appointment on contract basis, tenure basis, re-employment after superannuation and absorption	No probation.

— OM, dated 24-11-2022.

7. Mandatory Induction Training

In all cases of direct recruitment, there should be a mandatory induction training of at least two weeks' duration. Successful completion of the training may be made a prerequisite for completion of probation. The syllabus for the training may be prescribed by the cadre authorities in consultation with the Training Division of DoP&T.

Confirmation is de-linked from the availability of permanent vacancy in the grade. In other words, an officer who has successfully completed the probation, as prescribed under relevant rules, may be considered for confirmation (See Section 3 to know the procedure for Confirmation).

— OM, dated 24-11-2022.

FREQUENTLY ASKED QUESTIONS

1. *Can a Government servant submit application for posts within the Central Government, State Government, Autonomous / Statutory Bodies, CPSE, etc.?*

Permanent employees are given four opportunities in a year to apply for outside posts, except where it is withheld.

2. *When will an application for appointment of a Government servant not be forwarded?*

- (a) When he is under suspension.
- (b) When disciplinary proceedings are pending against him and a charge-sheet is issued.
- (c) Where a sanction for prosecution has been issued by the Competent Authority.
- (d) Where he is undergoing a penalty.
- (e) Where a charge-sheet has been filed in a Court of Law against him for criminal prosecution.

— OM, dated 24-11-2022.

2. Reservations and Concessions in Appointments

1. Reservation for SCs/STs

[Swamy's — Reservations and Concessions — Part - A]

1. Definition of SC/ST.— A person should belong to a Caste or a Tribe declared by the Central Government to be a Scheduled Caste or a Scheduled Tribe for the area of which he/she is a resident.

Further, a person claiming to be SC should profess either the Hindu or the Sikh or the Buddhist Religion. A person of the Scheduled Tribe may profess any religion. A person not belonging to SC/ST by birth will not be deemed to be a member of SC/ST by virtue of marriage with a person belonging to SC/ST. Similarly, a person belonging to SC/ST by birth will continue to belong to that category even after marriage with a person not belonging to SC/ST. If a SC person converted to a religion other than Hinduism / Sikhism / Buddhism reconverts himself back to these religions, he will be deemed to have reverted to his original SC status, if he is accepted by the members of that particular caste as one among them.

2. (a) Certificate to be produced.— A person claiming to belong to SC/ST should produce a certificate in the prescribed form signed by any of the following authorities:—

- (1) District Magistrate / Additional District Magistrate / Collector / Deputy Commissioner / Additional Deputy Commissioner / I Class Stipendiary Magistrate / Sub-Divisional Magistrate / Taluka Magistrate / Executive Magistrate / Extra-Assistant Commissioner.
- (2) Chief Presidency Magistrate / Additional Chief Presidency Magistrate / Presidency Magistrate.
- (3) Revenue Officer not below the rank of Tahsildar.
- (4) Sub-Divisional Officer of the area where the candidate and/or his family normally resides. — Orders 1, 95 and 95-B of Section 2.

If SC/ST/OBC candidates are unable to produce a certificate from the prescribed authorities for the purpose of appointment to posts / services, they may be provisionally appointed with a condition to produce the prescribed certificate within a reasonable time subject to verification.

— Orders 16 and 16-A of Section 1.

(b) **Conditions to be added in the appointment order.**— The appointment order should state that the offer of appointment is subject to verification of SC/ST certificate and if the verification reveals that the claim is false, the services will be terminated forthwith without assigning any further reasons.

— Order 95 of Section 2.

(c) **Action against Government servants who get appointed on the basis of false SC/ST/OBC certificates in case of Permanent Government servants.**— An inquiry as prescribed in Rule 14 of CCS (CCA) Rules, 1965 may be held and if the charges are proved, he/she should be removed or dismissed from service. In no circumstances, should any penalty be imposed.

— Order 16, Section 1.

(d) **Timely verification of caste / community certificate.**— In order to avoid withholding of pensionary benefits due to pendency of verification process, all State / UT Governments to ensure that veracity of caste / community certificate referred to the district authorities is verified and reported to the appointing authority within one month of receipt of request from such authority. It may be ensured that the process of verification is completed within six months of the employee joining service.

— OM, dated 29-3-2023.

While recruiting candidates belonging to OBC community, there may be no objection in accepting caste / community certificate in any of the scheduled languages in addition to the official language. State / UT Governments may make available a digital copy of such certificates online for verification by recruiting organizations.

— OM, dated 13-4-2023.

3. SC candidate to intimate change of religion.— Every SC member should immediately inform the Appointing Authority in the event of any change of his/her religion.

— Order 81 of Section 2.

4. Reservations in Direct Recruitment.—

Sl. No.	Method of Recruitment	% of Reservation	Roster
1. Direct Recruitment on All India basis by Open Competition	Organizations receiving candidates from a single common All India list prepared by SSC	15% for SC	200-point post-based roster
2. Organizations receiving candidates from a single common All India list prepared by SSC		7 ½ % for ST	
3. Direct Recruitment on All India basis otherwise than by Open Competition		16 ⅔ % for SC 7 ½ % for ST	120-point post-based roster

Sl. No.	Method of Recruitment	% of Reservation	Roster
4.	Local Recruitment at Delhi	Same as in 1. and 3. above	
5.	Direct Recruitment to Groups 'C' & 'D' posts normally attracting candidates from a locality or a region	Percentages applicable to the respective States	The present 100-point vacancy-based roster should be suitably revised as post-based
6.	Organizations receiving candidates from SSC on the basis of Centre-linked zonal basis		
7.	Organization spreading into more than one State / UT (The roster will be drawn up with the help of Dept. of Per. & Trg., taking into account population of SC/ST in such areas).		

5. Extent of application.—

Applicable to—

- all services / posts in the non-industrial as well as in the industrial establishments under the control of the Government of India;*
- work-charged posts except those required for emergencies like flood / accident relief, etc. Percentage of reservation will be as for Groups 'C' and MTS.*
- daily-rated staff, though reservation orders do not apply in toto, SC/ST candidates will be recruited in such a way that their total representation does not fall below the prescribed percentage.*

— Order 15 and 18, Section 2.

- casual workers appointed against regular posts. Shortfall will be adjusted by appointment of SC/ST candidates from outside.*
- Temporary appointments which are to last for 45 days or more.*

— Order 18-A, Section 2.

Not applicable to—

- posts in Department of Space and trainees under the Department of Atomic Energy;
- ex cadre posts. But if they are in existence for a long time, the question of including such posts in the cadre should be considered.
- posts filled by deputation. But eligible SC/ST candidates should be duly considered; if the number of posts is fairly substantial, a fair percentage should be filled by SC/ST subject to availability.

- (d) certain categories of Scientific/Technical personnel (earlier exempted from the reservation provisions) in respect of posts up to and including lowest grade in Group 'A'.
- (e) Temporary appointment of less than 45 days' duration.

6. Reservations in Promotions.— Reservation is provided at 15% and 7.5% to SCs and the STs, respectively, (i) in promotions through LDCE in Group 'B', 'C' and 'D' (ii) in promotion by selection in Group 'B', 'C' and 'D' and from Group 'B' to the lowest rung of Group 'A' and (iii) in promotion on the basis of seniority subject to fitness in all Groups, i.e. Group 'A', 'B', 'C' and 'D' (in all these cases). Reservation in posts by promotion, as indicated above, should be made applicable to all grades or services, in which the element of direct recruitment, if any, does not exceed 75%.

It is mandatory on the Ministries / Departments to satisfy following conditions before implementing the policy of reservation in promotions :

- (i) Collection of quantifiable data regarding inadequacy of representation of SCs and STs;
- (ii) Application of this data to each cadre separately;
- (iii) Maintenance of reservation roster, as per OM, dated 2-7-1997;
- (iv) DPC to assess the suitability of officers being considered for promotion to ensure administrative efficiency.

— Para. 5 of OM, dated 14-10-2022.

Reservation for SCs/STs in promotions will continue till such time as the representation of each of the categories in each cadre reaches the prescribed percentages of reservation.

— Order 38, Section 2.

7. Promotions / Appointments to Selection Grade posts.— Reservation orders are applicable, as for 'selection-cum-seniority' / 'selection by merit' method or 'seniority-cum-fitness' method.

8. Relaxations/Concessions admissible to SC/ST in direct Recruitment.—

- (i) *Age.*— Maximum age-limit up to five years, for all posts.

(ii) *Minimum standard in Examination / Interview.*— If adequate number of SC/ST candidates satisfying the minimum standard is not available, shortfall will be adjusted by relaxing the minimum standard, provided they are not considered unsuitable. There will be no relaxation in qualification and/or minimum number of marks / grade.

(iii) *Less than minimum standard.*— In the case of non-technical and quasi-technical Groups 'C' and MTS filled by direct recruitment instead of through written examination, if SC/ST candidates are not available even under relaxed standards, shortfall will be adjusted by appointment of the best among the remaining SC/ST candidates with minimum educational qualifications.

(iv) *Exemption from fee.*— Candidates are fully exempted from fees for admission to any examination for recruitment / selection.

(v) *Separate interviews.*— For direct recruitment against reserved vacancies, separate interviews will be held for SC/ST candidates so that they are not adjudged along with general candidates. — Order 11, Section 2.

(vi) In respect of candidates selected by relaxed standards, special training programme including in-service training should be given to enable them to come up to the standards of other candidates.

(vii) The composition of Selection Committees for making recruitment to 10 or more vacancies must have one member each belonging to SC/ST, minority community and OBC. Further one of the members of selection Committee / Board, whether from the general category or Minority Community or SC/ST/BC community should be a lady, failing which a lady member should be co-opted on the Committee / Board. Efforts should also be made to have such members where the number of vacancies is less than 10.

— Order 30, Section 2.

9. Relaxations / Concessions in Promotions.—

(i) *Age.*— Where an upper age-limit not exceeding 50 years is prescribed for promotion, it should be relaxed by five years. — Order 42, Section 2.

(ii) *Departmental Competitive Examination.*— SC/ST candidates who have not acquired the general qualifying standard should also be considered for promotion, if they are not considered unfit for such promotion, by relaxing the qualifying standards in their favour.

(iii) *Departmental qualifying examination.*— Suitable relaxation in the qualifying standard in such examinations should be made in the case of SC/ST candidates.

(iv) *Seniority.*— SC/ST Government servants shall, on their promotion by virtue of rule of reservation / roster, be entitled to consequential seniority also. — Order 37, Section 2.

(v) *Ad hoc promotions.*— *Ad hoc* promotions will be considered against vacancies in excess of 45 days. No formal roster is required to be maintained, but a simple register called '*Ad hoc* Promotion Register' will be maintained.

— Order 31, Section 2.

(vi) *Adjustment of meritorious candidates against unreserved points.*— SC/ST candidates appointed by promotion on their own merit and seniority and not owing to reservation or relaxation of qualifications will be adjusted against unreserved points of reservation roster, irrespective of the fact whether the promotion is made by selection method or non-selection method. These orders will take effect from 2-7-1997, the date on which post-based reservation was introduced. — Order 12, Section 1.

(vii) *SC/ST candidate to be considered against unreserved vacancy also.*— SC/ST candidates within the normal zone of consideration in the feeder grade will be considered for promotion against an unreserved vacancy along with other candidates treating him as if he belongs to general category. If selected, he will be appointed to the post adjusting him against the unreserved point.
— Order 12, Section 1.

(viii) *Retention of SC/ST status by meritorious candidates.*— SC/ST candidates appointed on their own merit (by direct recruitment or promotion) and adjusted against unreserved points will retain their status of SC/ST and will be eligible to get benefit of reservation in future / further promotions, if any.
— Order 12, Section 1.

(ix) *Zone of consideration of candidates for promotion.*— When sufficient number of SC/ST candidates are not available in the normal zone of consideration for promotion to selection posts, the normal zone will be extended to five times the number of vacancies in respect of SC/ST candidates only.
— Order 28, Section 2.

10. Liaison Officer.— An Officer in the rank of Deputy Secretary is nominated in each Ministry to ensure compliance of the reservation orders issued in favour of SCs/STs, to ensure prompt disposal of grievances and to scrutinize and consolidate statistical data. Liaison Officers are also to be nominated in the offices of Heads of Departments and in each Attached / Subordinate Offices.
— Order 72, Section 2.

11. Training to Liaison Officer.— Special Training should also be imparted to the Liaison Officer to implement the reservation orders in the Department. Training on Reservation in services for SCs/STs/OBCs especially designed for liaison officers be included in the Training Calendar of ISTM to achieve the following:—

- (i) To sensitize the Liaison Officers with their role, duties responsibilities and powers.
- (ii) To impart the knowledge and skills for implementation of instructions relating for SCs/STs/OBCs.
- (iii) To be fully competent for taking charge of the Reservation Cell.
- (iv) Other functions as deemed necessary for discharging duties efficiently.

— OM, dated 8-5-2014.

2. Reservations for Socially and Educationally Backward Classes (OBCs)

[Swamy's — Reservations and Concessions]

1. Definition.— OBCs for purposes of reservation would comprise of the castes and communities which are commonly mentioned in both the lists in the Mandal Commission Report and the State Governments' lists. A list of such common categories has been brought out by the Ministry of

Welfare. However, from this list, certain persons / sections will be excluded. The rest will be entitled for reservation. — Order 1, Section 3.

2. Reservation for SCs, STs and OBCs in Autonomous Bodies / Institutions, etc.— All the Ministries / Departments, etc., are requested to ensure that suitable provisions of reservation for SCs, STs and OBCs are made in the Statutes / Articles of Association of all the Autonomous Bodies / Institutions under them and such provisions are implemented scrupulously.

— Order 1-A, Section 3.

3. (a) Certificate.— Any candidate claiming to belong to the OBC should obtain a certificate in the prescribed form signed by any of the specified authorities. No other certificate will be accepted. The authority should also certify that the candidate does not belong to any one of the Creamy Layers.

— Order 4, Section 3.

Revision of Income criteria for Creamy Layer.— It has been decided to raise the income limit from ₹ 6 lakhs to ₹ 8 lakhs p.a. for determining Creamy Layer amongst the other backward classes. This limit takes effect from 1-9-2017.

— Orders 12 and 12-A, Section 3.

(b) Conditions to be added in the appointment order.— The appointment order should state that the offer of appointment is subject to verification of OBC certificate and if the verification reveals that the claim is false, the services will be terminated forthwith without assigning any further reasons.

4. Reservations only in direct recruitment.— 27% in civil posts / services are reserved for OBCs. No reservation in promotions.

5. Sub-quota of 4.5% for Minorities with effect from 1-1-2012.— It has been decided to carve out a sub-quota of 4.5% for Minorities as defined under Section 2 (c) of the National Commission for Minorities Act, 1992, from within the 27% reservation for OBCs in Government employment.

— OM, dated 22-12-2011.

EXEMPTIONS.— Scientific/Technical posts for conducting, organizing, guiding and directing research, which are above the lowest Group 'A' grade are exempted from the purview of reservations.— Order 6, Section 3.

6. Relaxations and concessions.—

(i) *Age-limit for direct recruitment.—* Three years, for all posts.

(ii) *Meritorious candidates not to be adjusted against reservation.—* OBC candidates recruited on the basis of merit on the same standards as for general candidates will not be adjusted against the 27% reservation.

(iii) *Minimum standard in examination / interview.—* In respect of written examination / interview for direct recruitment, relaxation of standards will be allowed for OBC candidates as in the case of SC/ST [See Para. 9 (ii) of Subject 1 in this Section.]

7. Separate Liaison Officer for OBC.— Deputy Secretary-in-charge of Administration or an officer of equivalent rank in each Ministry / Department Attached and Subordinate Offices will be appointed as Liaison Officer separately to look after work relating to matters of reservation for OBCs.

— Order 9, Section 3.

3. Reservation for Economically Weaker Sections (EWSs)

This reservation benefit will be effective in Direct Recruitment vacancies to be notified on or after 1-2-2019.

1. Percentage of Reservation.— 10% Reservation in direct recruitment in civil posts and services in the Government of India to EWSs who are not covered under the scheme of reservation for SCs, STs and OBCs.

2. Exemption.— Scientific and Technical posts which satisfy certain conditions can be exempted from the purview of the reservation orders by the Ministries / Departments.

3. Identification of persons as EWS.— (a) Persons who are not covered under the reservation scheme for SCs/STs/OBCs and whose family has gross annual income below ₹ 8 lakhs. Income shall also include income from all sources, i.e. salary, agriculture, business, profession, etc. for the financial year prior to the year of application. The income for this purpose will be gross income taken for the purpose of Income Tax.

(b) Persons whose family does not own or possess any of the following assets, irrespective of the family income:-

1. 5 acres of agricultural land and above [Property held in different places / cities would be clubbed];
2. Residential flat and commercial property of 1000 sq ft. and above;
3. Residential plot of 100 sq. yards and above in notified municipalities;
4. Residential plot of 200 sq. yards and above in areas other than the notified municipalities.

4. Family includes.— A person who seeks benefit of reservation, his/her parents and siblings below the age of 18 years as also his/her spouse and children below the age of 18 years.

5. Certificate.— The benefit of reservation under EWS can be availed upon production of an Income and Asset Certificate issued by the prescribed Authority. The Officer who issues the certificate should verify all relevant documents following due process as prescribed by the respective State / UT.

6. Condition to be added in the appointment order.— The appointment order should state that the appointment is provisional and is subject to verification and if the verification reveals that the claim is fake / false, the services will be terminated forthwith without assigning any further reasons.

7. *No carry forward of reservation.*— If in any recruitment year any vacancy earmarked for EWS is not filled up due to non-availability of a suitable EWS candidate, such vacancies shall not be carried forward to the next recruitment year as backlog.

8. Persons belonging to EWS selected against the quota for persons with benchmark disabilities / ex-servicemen shall be placed against the roster points earmarked for EWS.

9. *Adjustment of meritorious persons.*— A person belonging to EWS can compete for appointment against an unreserved vacancy. Persons belonging to EWS, selected on the basis of merit and not on account of reservation are not to be counted towards the quota meant for reservation.

10. *Grievance Redressal Officer.*— Every Government establishment shall appoint a senior officer of the Department as the Grievance Redressal Officer. The name, designation and contact details of the Grievance Redressal Officer may be displayed prominently on the website and in the office of the concerned establishment.

11. *Liaison Officer.*— A Liaison Officer may be appointed to monitor the implementation of reservation for EWSs.

— Orders 1 and 2, Section 4 and OM, dated 19-9-2022.

4. Post-Based Reservation Rosters

[Swamy's — Reservations and Concessions]

RESERVATION ROSTERS FROM 1-2-2019

(i) *Direct Recruitment on All India basis by Open Competition.*— (Annexure-II to OM, dated 31-1-2019).

Out of the specified 200 points, the reserved points will be—

For Scheduled Castes — 15% (30 points)

7	41	74	107	140	174
15	47	81	114	147	180
20	54	87	121	154	187
27	61	94	127	162	194
35	68	99	135	168	199

For Scheduled Tribes — 7.5 % (15 points)

14	55	95	136	175
28	69	108	148	188
40	80	120	160	198

For Other Backward Classes — 27% (54 points)

4	26	49	71	93	115	138	161	182
8	30	52	75	97	119	141	163	186
12	34	56	78	100	123	145	167	189
16	38	60	82	104	126	149	171	193
19	42	63	86	109	130	152	176	197
23	45	67	89	112	134	156	178	200

For Economically Weaker Sections — 10% (20 points)

10	50	90	131	170
21	62	98	142	181
31	70	110	150	190
43	83	122	164	196

The remaining 81 points will be unreserved.

- (ii) *Direct Recruitment on All India basis otherwise than by Open Competition.*— 120-point Roster. (Annexure – IV to O.M.)

Out of the specified 120 points, the reserved points will be—

For Scheduled Castes — 16.66 % (20 points)

7	31	56	79	103
13	37	61	85	110
19	43	67	91	115
25	49	73	97	119

For Scheduled Tribes — 7.5 % (9 points)

14	40	68	95	118
27	54	80	107	

For Other Backward Classes — 25.84 % (31 points)

4	24	44	63	82	101	120
8	28	47	66	86	105	
12	32	51	70	90	109	
16	35	55	74	94	113	
20	39	59	78	98	117	

For Economically Weaker Sections — 10% (12 points)

10	50	92
21	60	100
30	71	111
41	81	116

The remaining 48 points will be unreserved.

NOTE.— The principle of 'squeezing' has been kept in view.

(iii) *Local recruitment*.— The present 100-point vacancy-based roster maintained according to the proportionate population of SC/ST in different States is required to be revised suitably as Post-based rosters. Ministries / Departments have to prepare the revised rosters on the same principles.

(iv) *Promotions*.— 200-point roster. (Annexure - III to O.M.)

Out of these 200-points, reservation will be—

SC — 15% (30 points) and ST 7.5 % (15 points)

Points for SC/ST will be the same as prescribed for 200-point roster for All India Recruitment by open competition as in (i) above. No reservation for OBCs; all the remaining 155 points will be Unreserved.

EXPLANATORY NOTES.— Some of the important points of the Explanatory Notes given in Annexure-I to the OM, dated 2-7-1997 are:

(1) These rosters are not for determining seniority.

(2) The two fundamental principles in drawing up these rosters are (i) reservation to be kept within the prescribed percentage and (ii) total reservation not to exceed 50% of the cadre.

(3) The number of points in each roster will be equal to the number of points in the cadre. As and when cadre strength is increased or decreased, the roster will be expanded or contracted.

(4) Separate rosters to be maintained for each type of recruitment, i.e., direct recruitment, promotion, etc. For example, if a 200-personnel cadre is to be filled by direct recruitment and promotion on 50:50 basis, the rosters for direct recruitment and for promotion shall be 100-points each.

(5) Posts filled by transfer/transfer on deputation not to be entered in the roster.

(6) Roster will be operated on the replacement principle and not as a 'running account'. The points in the roster are fixed. Vacancies caused by retirement, etc., are to be filled only by the respective categories.

(7) SCs/STs/OBCs candidates selected on merit will not be shown against the reserved points but shown against Unreserved points.

(8) For initial operation of the roster, actual representation of the reserved categories in the cadre will be worked out and excess / shortage adjusted by future recruitment.

(9) In small cadres of up to 13 posts, please see the following model rosters and instructions given thereunder. The principles of operating these rosters will be found in the explanatory notes.



Scratch the hologram in the wrapper to reveal the QR Code.
Scan the QR Code and validate the book.
Genuine book owners can access free ebook.

I. DIRECT RECRUITMENT ON ALL INDIA BASIS

(A) BY OPEN COMPETITION

Model Roster for cadre strength up to 13 posts

Cadre Strength	Initial Recruitment	Replacement No.												
		1st	2nd	3rd	4th	5th	6th	7th	8th	9th	10th	11th	12th	13th
1	UR	UR	UR	OBC	UR	UR	SC	OBC	UR	EWS	UR	OBC	UR	ST
2	UR	UR	OBC	UR	UR	SC	OBC	UR	EWS	UR	OBC	UR	ST	
3	UR	OBC	UR	UR	SC	OBC	UR	EWS	UR	OBC	UR	ST		
4	OBC	UR	UR	SC	OBC	UR	EWS	UR	OBC	UR	ST			
5	UR	UR	SC	OBC	UR	EWS	UR	OBC	UR	ST				
6	UR	SC	OBC	UR	EWS	UR	OBC	UR	ST					
7	SC	OBC	UR	EWS	UR	OBC	UR	ST						
8	OBC	UR	EWS	UR	OBC	UR	ST							
9	UR	EWS	UR	OBC	UR	ST								
10	EWS	UR	OBC	UR	ST									
11	UR	OBC	UR	ST										
12	OBC	UR	ST											
13	UR	ST												

(B) OTHERWISE THROUGH OPEN COMPETITION

Roster cadre strength up to 13 posts

Cadre Strength	Initial Recruitment	Replacement No.												
		1st	2nd	3rd	4th	5th	6th	7th	8th	9th	10th	11th	12th	13th
1	UR	UR	UR	OBC	UR	UR	SC	OBC	UR	EWS	UR	OBC	SC	ST
2	UR	UR	OBC	UR	UR	SC	OBC	UR	EWS	UR	OBC	SC	ST	
3	UR	OBC	UR	UR	SC	OBC	UR	EWS	UR	OBC	SC	ST		
4	OBC	UR	UR	SC	OBC	UR	EWS	UR	OBC	SC	ST			
5	UR	UR	SC	OBC	UR	EWS	UR	OBC	SC	ST				
6	UR	SC	OBC	UR	EWS	UR	OBC	SC	ST					
7	SC	OBC	UR	EWS	UR	OBC	SC	ST						
8	OBC	UR	EWS	UR	OBC	SC	ST							
9	UR	EWS	UR	OBC	SC	ST								
10	EWS	UR	OBC	SC	ST									
11	UR	OBC	SC	ST										
12	OBC	SC	ST											
13	SC	ST												

II. PROMOTION

Model Roster for cadre strength up to 13 posts

REPLACEMENT NO.

Cadre Strength	Initial Recruitment	1st	2nd	3rd	4th	5th	6th	7th	8th	9th	10th	11th	12th	13th
1	UR	UR	UR	UR	UR	UR	SC	UR	UR	UR	UR	UR	UR	ST
2	UR	UR	UR	UR	UR	SC	UR	UR	UR	UR	UR	UR	ST	
3	UR	UR	UR	UR	SC	UR	UR	UR	UR	UR	UR	ST		
4	UR	UR	UR	SC	UR	UR	UR	UR	UR	UR	ST			
5	UR	UR	SC	UR	UR	UR	UR	UR	UR	ST				
6	UR	SC	UR	UR	UR	UR	UR	UR	ST					
7	SC	UR	UR	UR	UR	UR	UR	ST						
8	UR	UR	UR	UR	UR	UR	ST							
9	UR	UR	UR	UR	UR	ST								
10	UR	UR	UR	UR	ST									
11	UR	UR	UR	ST										
12	UR	UR	ST											
13	UR	ST												

NOTES:— (Common to both Direct Recruitment and Promotion).

1. For cadres of 2 to 13 posts, the roster is to be read from entry 1 under Column Cadre Strength till the last post and then horizontally till the last entry in the horizontal row, i.e., like "L".

2. All the posts of a cadre are to be earmarked for the categories shown under Column Initial Appointment. While initial filling up will be by the earmarked category, the replacement against any of the post in the cadre shall be by rotation as shown horizontally against the last post of the cadre.

3. The relevant rotation by the indicated reserved category could be skipped over if it leads to more than 50% representation of reserved category.

— Order 1, Section 1.

Other instructions:— (i) *Grouping of posts.*— If the total number of posts in any cadre or grade is below 20, they should be grouped with posts in the same group, i.e., Group 'A', 'B', 'C' or MTS, taking into account the status, salary, qualifications, etc. A group should not ordinarily consist of less than 25 posts. This is applicable for direct recruitment only. Proposals for such grouping requires the approval of the Department of Personnel and Training. If grouping of posts is not found possible, the relevant model roster for cadre strength up to 13 may be adopted.

(ii) *Posts of Safaiwala.*— These are filled generally by SC and should not be grouped with other isolated posts even if they are less than 20.

(iii) *Separate roster for each grade/group.*— A separate roster will be maintained for each grade / group of posts. Again separate rosters are necessary for different methods of recruitment.

— Order 1, Section 1.

5. Reservation for the Persons with Benchmark Disabilities

[Swamy's — Reservations and Concessions — Part - B]

Provisions under Rights of Persons with Disabilities Act, 2016

Non-discrimination in employment.—

1. No Government establishment shall discriminate against any person with disability in any matter relating to employment unless any establishment has been exempt from the provisions of this section.
2. Every Government establishment shall provide reasonable accommodation and appropriate barrier free and conducive environment to employees with disability.
3. No promotion shall be denied to a person merely on the ground of disability.

4. No Government establishment shall dispense with or reduce in rank, an employee who acquires a disability during his or her service: Provided that, if an employee after acquiring disability is not suitable for the post he was holding, shall be shifted to some other post with the same pay scale and service benefits: Provided further that if it is not possible to adjust the employee against any post, he may be kept on a supernumerary post until a suitable post is available or he attains the age of superannuation, whichever is earlier.
5. The appropriate Government may frame policies for posting and transfer of employees with disabilities.

— Section 20, Rights of PwD Act, 2016.

Identification of posts for reservation.— The appropriate Government shall—

- (i) identify posts in the establishments which can be held by respective category of persons with benchmark disabilities in respect of the vacancies reserved;
- (ii) constitute an expert committee with representation of persons with benchmark disabilities for identification of such posts;
- (iii) undertake periodic review of the identified posts at an interval not exceeding three years. — Section 33, Rights of PwD Act, 2016.

1. Quantum of Reservation

- (i) In case of direct recruitment, four per cent of the total number of vacancies to be filled up by direct recruitment, in the cadre strength in each group of posts i.e. Groups A, B and C shall be reserved for persons with benchmark disabilities.
- (ii) Against the posts identified for each disabilities, of which, one per cent each shall be reserved for persons with benchmark disabilities under Clauses (a), (b) and (c) and one per cent, under Clauses (d) and (e), unless otherwise excluded—
 - (a) blindness and low vision;
 - (b) deaf and hard of hearing;
 - (c) locomotor disability including cerebral palsy, leprosy cured, dwarfism, acid attack victims and muscular dystrophy;
 - (d) autism, intellectual disability, specific learning disability and mental illness;
 - (e) multiple disabilities from amongst persons under Clauses (a) to (d) including deaf-blindness.

2. Exemption

If any Ministry/Department in the Central Government considers it necessary to exempt any establishment or any cadre or cadres fully or partly from the provisions of reservation for persons with benchmark disabilities, it shall make a reference to the Department of Empowerment of Persons with Disabilities giving full justification for the proposal, who having regard to the type of work carried out in any Government establishment by notification and subject to such condition, if any, as may be specified in the notification, in consultation with the Chief Commissioner for Persons with Disabilities (CCPD) may exempt any Establishment or any cadre(s) fully or partly from the provisions of reservation for persons with benchmark disabilities.

3. Adjustment against unreserved vacancies

- (i) In the category of posts which are identified suitable for persons with benchmark disabilities, a person with benchmark disability cannot be denied the right to compete for appointment by direct recruitment against an unreserved vacancy. Thus a person with benchmark disability can be appointed by direct recruitment against vacancy not specifically reserved for the persons with benchmark disability, provided the post is identified suitable for persons with benchmark disability of the relevant category.
- (ii) Persons with benchmark disabilities selected without relaxed standards along with other candidates, will not be adjusted against the reserved share of vacancies. The reserved vacancies will be filled up separately from amongst the eligible candidates with benchmark disabilities which will thus comprise of candidates with benchmark disabilities who are lower in merit than the last candidate in merit list but otherwise found suitable for appointment, if necessary, by relaxed standards.

4. Certificate of Disability

A person who wants to avail the benefit of reservation will have to submit a certificate of disability issued by a Competent Authority. Such certificate in the event of selection of such person for any post, will be subject to such verification / re-verification as may be decided by the competent authority.

5. Computation of number of posts

- (i) The number of posts to be reserved for persons with benchmark disabilities in case of Group 'C' posts shall be computed on the basis of total number of vacancies in the cadre strength of Group 'C' posts in the establishment, although the recruitment of the persons with benchmark disabilities would only be against the category of posts identified suitable for them. The number of vacancies

to be reserved for the persons with benchmark disabilities in case of direct recruitment to Group 'C' posts in an establishment shall be computed by taking into account the total number of vacancies arising in Group 'C' posts for being filled by direct recruitment in a recruitment year both in the identified and non-identified category of posts under the establishment. Since reservation for Persons with Benchmark Disabilities is provided computing total number of vacancies in the cadre strength in identified category of posts as well as unidentified category of posts, it may be possible that number of persons appointed by reservation in an identified category of post may exceed four per cent.

- (ii) Reservation for persons with benchmark disabilities in Group 'A' or Group 'B' posts shall be computed on the basis of total number of vacancies occurring in direct recruitment quota in the cadre in all the Group 'A' posts or Group 'B' posts respectively, and the computation of total vacancies shall include vacancies arising in the identified and non-identified category of posts.

6. Maintenance of Rosters

- (i) Every Government establishment shall maintain group-wise a separate vacancy-based 100-point vacancy-based reservation roster register for determining / effecting reservation for the Persons with Benchmark Disabilities - one each for Group 'A', Group 'B' and Group 'C' posts filled by direct recruitment.
- (ii) Each register shall have cycles of 100 points and each cycle of 100 points shall be divided into four blocks, comprising the following points:-
 - 1st Block - point No. 01 to point No. 25
 - 2nd Block - point No. 26 to point No. 50
 - 3rd Block - point No. 51 to point No. 75
 - 4th Block - point No. 76 to point No. 100
- (iii) Points 1, 26, 51 and 76 of the roster shall be earmarked for persons with benchmark disabilities - one point each for four respective categories of disabilities. The Head of the establishment shall ensure that vacancies identified at Sl. Nos. 1, 26, 51 and 76 are earmarked for the respective categories of the persons with benchmark disabilities. However, the Head of the establishment shall decide the placement of the selected candidate in the roster register.
- (iv) All the vacancies arising irrespective of vacancies reserved for Persons with Benchmark Disabilities shall be entered in the relevant roster. If the vacancy falling at point no. 1 is not identified for the

Person with Benchmark Disability or the Head of the establishment considers it desirable not to fill it up by Persons with Benchmark Disabilities or it is not possible to fill up that post by the Persons with Benchmark Disabilities for any other reason, one of the vacancies falling at any of the points from 2 to 25 shall be treated as reserved for the person with benchmark disability and filled as such.

- (v) Likewise, a vacancy falling at any of the points from 26 to 50 or from 51 to 75 or from 76 to 100 shall have to be filled by the Persons with Benchmark Disabilities. The purpose of keeping points 1, 26, 51 and 76 as reserved is to fill up the first available suitable vacancy.
- (vi) There is a possibility that none of the vacancies from 1 to 25 is suitable for any category of the person with benchmark disability. In that case, two vacancies from 26 to 50 shall be filled as reserved for persons with benchmark disabilities. If the vacancies from 26 to 50 are also not suitable for any category, three vacancies shall be filled as reserved from the third block containing points from 51 to 75. This means that if no vacancy can be reserved in a particular block, it shall be carried over into the next block
- (vii) After all the 100 points of the roster are covered, a fresh cycle of 100 points shall start.
- (viii) If the number of vacancies in a year is such as to cover only one block (say 25 vacancies) or two (say 50 vacancies), the category of the persons with benchmark disabilities should be accommodated as per the roster points. However, in case, the said vacancy is not identified for the respective category, the Head of the establishment shall decide the category on the basis of the nature of the post, the level of representation of the specific disabled category in the concerned grade / post, etc.

7. *Inter se exchange and carry forward of reservation.*

- (i) Where in any recruitment year any vacancy cannot be filled up due to non availability of a suitable person with benchmark disability or for any other sufficient reason, such vacancy shall be carried forward in the succeeding recruitment year and if in the succeeding recruitment year also suitable person with benchmark disability is not available, it may first be filled by interchange among the **following four** categories of disabilities, at one per cent each to each category:
 - (a) blindness and low vision;
 - (b) deaf and hard of hearing;

- (c) locomotor disability including cerebral palsy, leprosy cured, dwarfism, acid attack victims and muscular dystrophy;
 - (d) autism, intellectual disability, specific learning disability and mental illness;
- multiple disabilities from amongst persons under Clauses (a) to (d) including deaf-blindness,
- (ii) Only when there is no person with benchmark disability available for the post in that year, the employer shall fill up the vacancy by appointment of a person, other than a person with benchmark disability.
 - (iii) If the nature of vacancies in an establishment is such that a given category of person cannot be employed, the vacancies may be interchanged with the prior approval of Department of Empowerment of Persons with Disabilities, among the above-mentioned four categories.
 - (iv) If any vacancy reserved for any category of benchmark disability cannot be filled due to non-availability of a suitable person with that benchmark disability or, for any other sufficient reason, such vacancy shall be carried forward as a 'backlog reserved vacancy' to the subsequent recruitment year.
 - (v) In the subsequent recruitment year, the 'backlog reserved vacancy' shall be treated as reserved for the category of disability for which it was kept reserved in the initial year of recruitment. However, if a suitable person with that benchmark disability is not available, it may be filled by interchange among the categories of benchmark disabilities identified for reservation. In case no suitable person with benchmark disability is available for filling up the vacancy in the succeeding year also, the employer may fill up the vacancy by a person other than a person with benchmark disability. If the vacancy is filled by a person with benchmark disability of the category for which it was reserved or by a person of other category of benchmark disability by *inter se* exchange in the subsequent recruitment year, it will be treated to have been filled by reservation. But if the vacancy is filled by a person other than a person with benchmark disability in the subsequent recruitment year, reservation shall be carried forward for a further period up to two recruitment years whereafter the reservation shall lapse. In these two subsequent years, if situation so arises, the procedure for filling up the reserved vacancy shall be the same as followed in the first subsequent recruitment year.
 - (vi) The Government establishment shall interchange vacancies only if due process of recruitment, viz. proper advertisement of vacancy to fill up the vacancies reserved for persons with benchmark disabilities has been complied with.

- (vii) In order to ensure that cases of lapse of reservation are kept to the minimum, any recruitment of the persons with benchmark disabilities candidates shall first be counted against the additional quota brought forward from previous years, if any, in their chronological order. If candidates are not available for all the vacancies, the older carried forward reservation would be filled first and the current vacancies would be carried forward if not filled up, provided that in every recruitment, the number of vacancies reserved for Persons with Benchmark Disabilities including carried forward vacancies will be announced beforehand, for the information of all aspirants.

8. Horizontality of Reservation.-

- (i) Reservation for backward classes of citizens (SCs, STs and OBCs) is called vertical reservation and the reservation for persons with benchmark disabilities and ex-servicemen is called horizontal reservation. Horizontal reservation cuts across vertical reservation (in what is called interlocking reservation) and persons selected against the quota for persons with benchmark disabilities have to be placed in the appropriate category viz. SC/ST/OBC/Unreserved depending upon the category to which they belong in the roster meant for reservation of SCs/STs/OBCs.

To illustrate, if in a given year there are two vacancies reserved for the persons with benchmark disabilities and out of two persons with benchmark disabilities appointed, one belongs to Scheduled Caste and the other belongs to Unreserved category, then the SC candidate with benchmark disability shall be adjusted against the SC point in the reservation roster and the Unreserved candidate with benchmark disability against unreserved point in the relevant reservation roster. In case none of the vacancies falls on point reserved for the SCs, the candidate under benchmark disability belonging to SC shall be adjusted in future against the next available vacancy reserved for SCs.

- (ii) Since the persons with benchmark disabilities have to be placed in the appropriate category, viz. SC/ST/OBC/Unreserved in the roster meant for reservation of SCs/STs/OBCs, the application form for the post should require the candidates applying under the quota reserved for persons with benchmark disabilities to indicate whether they belong to SC/ST/OBC or Unreserved. Thus, reservation for persons with benchmark disabilities is horizontal.

9. Certificate

- (i) To ensure proper implementation of the provisions of reservation for persons with benchmark disabilities, the requisitioning authority while sending the requisition to the recruiting agency or

authority for filling up of posts shall furnish the following certificate to the recruiting agency:-

"It is certified that the requirements of the THE RIGHTS OF PERSONS WITH DISABILITIES ACT, 2016' which has become effective from 19th day of April, 2017 and the policy relating to reservation for persons with benchmark disabilities has been taken care of while sending this requisition. The vacancies reported in this requisition fall at points no of cycle no of 100 point reservation roster out of which number of vacancies are reserved for persons with benchmark disabilities."

- (ii) At the time of initial appointment against a vacancy reserved for persons with benchmark disabilities, the appointing authority shall ensure that the candidate is eligible to get the benefit of reservation.

10. Relaxation of standard of suitability

- (i) If sufficient number of candidates with benchmark disabilities candidates are not available, candidates belonging to this category may be selected on relaxed standard to fill up the remaining vacancies reserved for them provided they are not found unfit for such post or posts. However, this provision shall not be used to allow any relaxation in the eligibility criteria laid down for the issuance of certificate of disability.
- (ii) Same relaxed standard should be applied for all the candidates with Benchmark Disabilities, whether they belong to Unreserved / SC/ST/OBC. No further relaxation of standards will be considered or admissible in favour of any candidate from any category whatsoever.

11. Medical Examination

As per FR 10, every new entrant to Government Service on initial appointment is required to produce a medical certificate of fitness issued by a competent authority. In case of medical examination of a person with benchmark disabilities for appointment to a post identified as suitable to be held by a person suffering from a particular kind of disability, the concerned Medical Officer or Board shall be informed beforehand that the post is identified suitable to be held by persons with benchmark disabilities of the relevant category and the candidate shall then be examined medically keeping this fact in view.

12. Annual reports regarding representation

The Ministries/Departments shall continue to upload data on representation of Persons with Benchmark Disabilities along with data on SCs, STs, OBCs in respect of posts/services under the Central Government on the URL

i.e. www.rrcps.nic.in as on 1st January of every year. All Ministries/Departments have been provided respective user code and password with guidelines for operating the URL.

13. Maintenance of Register of Complaints by the Government establishment

- (i) A senior officer of the Department may be appointed as the Grievance Redressal Officer by every Government establishment.
- (ii) The Grievance Redressal Officer shall maintain a register of complaints of persons with disabilities .
- (iii) Any person aggrieved with any matter relating to discrimination in employment against any person with disability may file a complaint with the Grievance Redressal Officer of the respective Government establishment.
- (iv) Every complaint shall be inquired into within two months of its registration and outcome thereof or action taken thereon shall be communicated to the complainant / Person with Benchmark Disability.
— Order 1, Section 2.

14. Exemption from payment of application fee and examination fee

Candidates shall be exempted from payment of application fee and examination fee, prescribed in respect of competitive examinations held by the Staff Selection Commission, the Union Public Service Commission, etc., for recruitment to various posts subject to appointment to the post on the basis of standards of medical fitness prescribed for that post (including any concession specifically extended to the Persons with Benchmark Disabilities) and who enclose with the application form, necessary certificate from a Competent Authority in support of their claim of disability.

— Order 2, Section 2.

6. Reservations for Meritorious Sportspersons

[Swamy's — Reservations and Concessions — Part - A]

1. Eligibility.— (i) Persons who have represented a State or the country in the National or International competition in any of the games / sports listed below.

(ii) Their University in the Inter-University Tournaments conducted by the Inter-University Sports Board in any of these games.

(iii) The State Schools Teams in the National Sports / Games conducted by the All India School Games Federation in any of these games / sports.

(iv) Persons who have been awarded National Awards in Physical Efficiency under National Physical Efficiency Drive.

List of Games / Sports.— Archery, Athletics, Atya-Patya, Badminton, Ball-Badminton, Baseball, Basketball, Billiards and Snookers, Body-Building, Boxing, Bridge, Carrom, Chess, Cricket, Cycling, Cycle Polo, Deaf Sports, Equestrian, Fencing, Football, Golf, Gymnastics, Handball, Hockey, Ice-Hockey, Ice-Skating, Ice-Skiing, Judo, Kabaddi, Karate, Kayaking and Canoeing, Kho - Kho, Kudo, Mallakhamb, Motor Sports, Net Ball, Para Sports (for sports discipline included in Para Olympics and Para Asian Games), Pencak Silat, Polo, Powerlifting, Shooting, Shooting Ball, Roll Ball, Roller Skating, Rowing, Rugby, Sepak Takraw, Soft Ball, Soft Tennis, Squash, Swimming, Table Tennis, Taekwondo, Tenni-Koit, Tennis, Tenpin Bowling, Triathlon, Tug-of-war, Volleyball, Weightlifting, Wushu, Wrestling, Yachting, Tennis Ball Cricket and Yogasana.

— Appendix-1, Chapter 6 and OM, dated 17-6-2022.

2. Extent of reservation.— No specific percentage of reservation is prescribed. Ministries / Departments can recruit meritorious sportspersons in any year against vacancies not exceeding 5%, in relaxation of the recruitment procedure, provided the overall reservations of all types do not exceed 50% of the total number of vacancies.

3. Posts to which reservation applicable.— Group 'C' post filled by direct recruitment otherwise than through the UPSC. No reservation is permitted in direct recruitment to Group 'A'/'B' posts. Appointing authorities at their discretion may notify vacancies reduced up to 5% for being filled by direct recruitment of sportsperson. No reservation preference is permitted in promotions. The fact may be taken into account in assessing the overall merit.

4. Recruitment procedure.— Ministries / Departments may consider applications received from meritorious sportspersons duly supported by the certificates awarded by the specified authorities. If they are satisfied that the candidate fulfils the eligibility criteria and also the minimum educational qualifications, etc., appointment may be made.

5. Placement in the reservation roster.— Sportsperson so appointed will be adjusted in the reservation roster of SC/ST/OBC/General category to which he belongs. For example, if the candidate belongs to SC, adjustment will be against the point reserved for SC.

— Order 11, Section 6.

6. Age Relaxations.— Maximum age-limit may be relaxed by five years (10 years for SCs/STs and 8 years for OBCs) for appointment to all Groups of Civil posts / services filled otherwise than through competitive examinations conducted by the UPSC.

— Section 6.

7. Reservations for Ex-Servicemen

[Swamy's — Reservations and Concessions — Part - A]

1. Definition.— 'Ex-Serviceman' means a person who has served in any rank (whether as a combatant or as a non-combatant) in the Regular Army, Navy and Air Force of the Indian Union and the Territorial Army Personnel.

Army Postal service personnel who retire directly from APS without reversion to P & T Department with a pension OR who have been released from such service on medical grounds attributable to military service or circumstances beyond their control and awarded medical / other disability pension are also treated as Ex-Servicemen. — Order 3, Section 5.

It also includes a person who retired, or was released on medical grounds or due to reduction in the establishment, or was released after completing the specific period of engagement.

Short Service Commissioned Officers released from service after completing initial terms of engagement otherwise than by way of dismissal or discharge on account of misconduct or inefficiency and have been given gratuity shall be eligible to the status of Ex-servicemen.

— Notification, dated 13-2-2020.

2. Reservation.— Ten per cent of the vacancies in Group 'C' and twenty per cent in Group 'D' posts are reserved for Ex-Servicemen in direct recruitment only. No reservation is allowed in promotions.

3. Recruitment procedure.— Vacancies will be notified to the DG (R) and the Rajya and Zilla Sainik Boards, as also to Ex-Servicemen Cell. Along with the application, the applicant has to submit an undertaking in the prescribed format that he had been duly released / retired / discharged from the Army Forces.

4. Placement in the Roster.— An Ex-Serviceman selected for appointment should be placed against the category to which he belongs. For example, if he belongs to SC, he should be placed against the point for SC.

5. Reservation benefit only in the first civil employment.— Once an Ex-Serviceman is appointed to a civil post against a reserved vacancy, he ceases to be an Ex-Serviceman, and hence not entitled to the benefit of reservation for other posts subsequently. However, the benefit of age relaxation as prescribed for Ex-Servicemen is admissible to such re-employed persons for securing another employment in a higher grade or cadre in Groups 'C' and 'D'.

5-A. Reservation benefit to Ex-servicemen who apply for various examinations before joining civil posts.— An ex-Serviceman, as soon as he/she joins any civil employment should give self-declaration / undertaking to the concerned employer about the date-wise details of application for various vacancies for which he/she had applied before joining the initial civil employment. — Order 11-A, Section 5.

6. Relaxations and concessions.—

(i) **Age.**— (a) Three years over and above the period of service rendered in the Army, Navy and Air Force. Disabled Defence Service personnel eligible for appointment to Group 'C' posts filled through

competition examination will be allowed 3 years age relaxation (8 years in the case of SC/ST). For Group 'C'/'D' posts filled through Employment Exchange for such disabled personnel, the maximum age-limit is raised to 45 years (50 years in the case of SC/ST).

(b) For Group 'A'/'B' posts filled by direct recruitment by UPSC on All India Competitive Examination, five years relaxation is admissible for Ex-Servicemen and Commissioned Officers including ECOs / SSCOs with 5 years' military service released on completion of assignment, on invalidity and due to physical disability attributable to military service.

(ii) *Educational Qualifications.*— Ex-Servicemen with not less than three years service in the Armed Forces is exempted from possession of the prescribed educational qualifications for Group 'D' posts. For Group 'C', minimum educational qualification may be relaxed at the discretion of the appointing authority, if such minimum qualification is Middle School Standard and the Ex-Servicemen has put in at least three years service in the Army and is otherwise found suitable. A matriculate Ex-Serviceman with 15 years service in the Armed Forces will be considered eligible for posts for which graduation is prescribed, if work experience of technical or professional nature is not essential or if the appointing authority is satisfied that the Ex-Servicemen will perform the duties by undergoing on-the-job training for a short duration.

— Order 3, Section 5.

Relaxation of educational qualification as above applies for promotion also.

(iii) *General standard for selection.*— Required standard may be relaxed, if persons for all the vacancies are not available and if such relaxation will not affect the performance by such candidate.

(iv) *Application / examination fee.*— Exempted for examinations conducted by UPSC/SSC and the Institute of Secretariat Training and Management for filling the vacancies reserved for them in various Group 'C' posts.

(v) *Special Concessions for Disabled Ex-Servicemen.*— If the disability is attributed to military service, he will be accorded Priority-I along with a retrenched employee for appointment to Groups 'C' and MTS posts filled by direct recruitment. Up to two members, each of the families of defence service personnel (widow, son/daughter/near relative who agree to support the family) will be granted priority immediately after the disabled Ex-Servicemen, i.e., Priority II-A. Medical Certificate of Fitness granted by a Demobilization Medical Board of the Defence Services would be considered adequate for appointment to all posts.

— Order 4, Section 5.

(vi) *T.A. to handicapped Ex-military personnel called for interview.*— The concessions regarding grant of T.A. to SC/ST called for interview are also extended on the same scale. Procedure for drawal and payment will also be the same.

— GIOs, SR 132.

7. Liaison Officers.— Officer appointed to look after the reservation matters of SC/ST would also be the L.O. for reservation matters relating to Ex-Servicemen and physically handicapped. — Order 14, Section 5.

8. Compassionate Appointments of Dependants

[Swamy's — Complete Manual on Establishment and Administration and Reservations and Concessions — Part - A]

1. Applicable to a dependent family member of.—

- (a) a Government servant who dies in service (including death by suicide);
- (b) is retired on medical grounds before attaining the age of 55 years (57 years in the case of Group 'D' (MTS) officials);
- (c) a member of the Armed Forces who—
 - (i) dies in service; or (ii) killed in action; or (iii) is medically boarded out and unfit for civil employment.

Service includes extension in service (but not re-employment). Service includes re-employment of Ex-Servicemen in civil post before the normal age of retirement.

Dependent family member means (a) spouse; (b) son / daughter (including adopted son / adopted daughter) and (c) brother or sister in the case of unmarried Government servant / member of the Armed Forces at the time of his death in harness / retirement on medical grounds, as the case may be.

From 25-2-2015, "Married Son" can be considered for Compassionate Appointment, provided he fulfils all other requirements of the scheme and fulfils the criteria laid down in the OM, dated 16-1-2013.

— OMs, dated 25-2-2015 and 5-9-2016.

In the case of a missing employee.— Compassionate appointment can be considered after two years from the date of missing—

- (a) if FIR has been filed and the missing official is not traceable;
- (b) if he had at least two years to retire;
- (c) if he is not suspected to have committed fraud/joined terrorist organization/gone abroad;
- (d) if the Competent Authority feels that the case is genuine; and
- (e) decision is to be taken at the level of Secretary.

Concession of compassionate appointment is admissible to one dependant only.

EXCEPTIONS.— (1) In exceptional circumstances, with the prior approval of the Secretary of the Ministry / Department concerned, the appointment

on compassionate grounds may be considered even when there is an earning member in the family of the deceased.

(2) If the deceased was unmarried, one of the dependent brothers / sisters will be eligible for consideration, on giving an undertaking that he/she will look after the other family members who were dependent on the deceased Government servant.

2. Posts to which appointment made.— Only in Group 'C' posts against the direct recruitment quota.

3. Appointing Authority.—

Ministry / Department	... Joint Secretary in-charge of the Administration or Secretary
Attached and Subordinate Offices	... Heads of the Departments under SR 2 (10).
Department of Posts	... Respective Circle Selection Committee.

4. Conditions.—

- (i) Compassionate appointment can be made only against the direct recruitment quota and
- (ii) Applicants should fulfil all eligibility conditions in Recruitment Rules.

5. Relaxations.—

(i) **Age.**— Maximum age-limit may be relaxed wherever necessary, but no relaxation is permissible in the minimum limit of 18 years. If the ward is below 18 years of age at the time of death of the Government servant and if he alone is available for employment, he should apply as soon as he attains 18 years.

(ii) **Qualifications.**— Hereafter no direct recruitment in the -1S scale will take place. In certain exceptional circumstances like compassionate cases, etc., Government may need to provide employment opportunities to certain classes of persons not immediately meeting the minimum educational standards. Government should recruit them as trainees who will be given the regular Pay Bands and Grade Pay only on acquiring the minimum qualification prescribed under the Recruitment Rules. A person appointed as 'Trainee' has to acquire the minimum educational qualification in 5 years. The emoluments of these trainees, during the period of their training and before they are absorbed in the Government as employees, will be governed by the minimum of the -1S Pay Band without any Grade Pay. In addition, they will be granted all applicable Allowances, like Dearness Allowance, House Rent Allowance and Transport Allowance at the admissible rates.

Fixation of the pay of the pre-revised pay scale of 1S scale granted to candidates appointed as trainees on compassionate grounds in the Seventh Central Pay Commission with effect from 1-1-2016.— Level-1 of the Pay Matrix introduced on implementation of the Seventh CPC Report will be the replacement for the pre-revised -1S scale. The pay of the trainees governed by the 1S scale may be revised by using the Fitment Factor of 2.57 for placement in Level-1 in conformity with the Rule 7 of the CCS (RP) Rules, 2016. All pre-revised pay stages lower than pre-revised pay of ₹ 7,000 in the pre-revised 1S scale shall not be considered for determining the benefit of bunching, on the same lines as has been clarified by this Department's O.M., dated 3-8-2017 on application of the benefit on account of bunching.

— Order 14, Section 7.

A person appointed as 'trainee' on Compassionate Ground is entitled to all kinds of leave, Medical Facilities / Benefits of CGEGIS / CGHS, short-term advances recoverable in 3 instalments, LTC concession, increment at normal rates in pay scale of -1S, CEA, OTA, subject to conditions.

— Order 15, Section 7.

(iii) *Procedure.*— Conditions in the recruitment procedure, viz., clearance from Surplus Cell, recruitment through SSC, Employment Exchange, etc., will be relaxed. Compassionate appointments are exempted from ban orders on filling up of vacant posts.

6. Limitations.— Compassionate appointments can be made only up to 5% of direct recruitment vacancies which may be calculated on the basis of total direct recruitment vacancies for Groups 'C' posts (including technical posts) that have arisen in the year. No compassionate appointment can be made if there is no vacancy.

7. Reservations.— Person selected for compassionate appointment to be adjusted in the recruitment roster against the appropriate category, i.e., SC/ST/OBC / General category, depending upon the category to which he belongs.

8. Procedure for appointment.— Heads of Offices will make the proposal and the Head of Department / Ministry will decide the appointment. Proposal will be made in the prescribed form containing all particulars of the candidate and the specific relaxation required in age, qualifications, etc. The Head of Department / Ministry will take into account all the circumstances of the family, the benefits such as CGEIS payments, GPF / CPF, gratuity, etc., received, the existence of any earning member in the family on the one hand and on the other, size of the family, ages of children, essential needs, liabilities and the financial condition of the family. Financial benefits received need not necessarily be a ground for rejecting the proposal *vis-a-vis* other adverse factors urging acceptance.

9. Other Provisions.—

(i) *Widow in appointment after remarriage.*— There is no bar against a widow appointed on compassionate grounds continuing in the appointment after remarriage.

(ii) *No consideration for change in post.*— Once the compassionate appointment is made, request for a change in the post, on compassionate grounds will not be entertained. The appointee will be treated like his colleagues for career advancement in the normal course. — Section 7.

(iii) *Time-limit for making Compassionate Appointment.*— The provisions / instructions contained in OM, dated 5-5-2003 regarding time-limit for Compassionate Appointment stand withdrawn in view of the Hon'ble High Court of Allahabad judgment, dated 7-5-2010 and the cases of Compassionate Appointment are to be regulated in terms of instructions issued vide OM, dated 9-10-1998 as amended from time to time.— Order 12, Section 7.

FREQUENTLY ASKED QUESTIONS

1. *Will the limit of 50% on reservation apply to candidates who are selected on their own merit in recruitment / promotion?*

For recruitment, the limit will be computed excluding such cases but in promotion they will be included for determining the limit of 50%.

2. *Can a person claim to be a member of SC/ST merely because he or she has married a person belonging to a SC/ST?*

No.

3. *Can a widow appointed on compassionate ground continue in service after getting re-married?*

Yes.

4. *Can an Ex-serviceman, who has already availed the benefit of Ex-servicemen on his first re-employment in civilian post avail the benefit for a second time?*

No.

3. Confirmation

[Swamy's — Complete Manual on Establishment and Administration]

An officer who has successfully completed the probation, as prescribed under relevant recruitment rules, will be considered for confirmation. Confirmation should be given effect from the date following the date of satisfactory completion of the prescribed period of probation or the extended period of probation, as the case may be. The decision to confirm the probationer or to extend the period of probation, as the case may be should be communicated to the probationer normally within 6 to 8 weeks.

Probation should not be extended for more than a year and, in no circumstance, an employee should be kept on probation for more than double the normal prescribed period of probation.

The officer will be deemed to have successfully completed the probation period if no order confirming, discharging or reverting the officer is issued within eight weeks after expiry of double the normal period of prescribed probation.

A Government servant appointed by transfer would duly have been confirmed in the earlier post. In such a case, further confirmation in the new post would not be necessary and he could be treated as permanent in the new post. However, where a Government servant who has not already been confirmed in the old post is appointed by transfer, it would be necessary to confirm him in the new post. In such cases, he may be considered for confirmation after watching him for two years. During that period of two years, the officer would earn two reports in the new grade and the DPC may consider his case for confirmation on the basis of these APARs.

— Order, Chapter 19.

4. Conduct Rules

[Swamy's — CCS (Conduct) Rules]

1. Do's and Don'ts — for you

Do's.—

1. Maintain absolute integrity at all times.
2. Maintain absolute devotion to duty at all times.
3. Those holding responsible posts — maintain independence and impartiality in the discharge of your duties.
4. Maintain a responsible and decent standard of conduct in private life.
5. Render prompt and courteous service to the public.
6. Observe proper decorum during lunch break.
7. Report to superiors the fact of your arrest or conviction in a Criminal Court and the circumstances connected therewith, as soon as it is possible to do so.
8. Keep away from demonstrations organized by political parties in the vicinity/neighbourhood of Government offices.
9. Maintain political neutrality.
10. Manage private affairs in such a way as to avoid habitual indebtedness or insolvency.
11. If any legal proceedings are instituted for the recovery of any debt due from you or for adjudging you as an insolvent, report the full facts of such proceedings to the Competent Authority.
12. Act in accordance with Government policies.
13. Observe courtesy and consideration to Members of Parliament and State Legislatures.
14. In performance of duties in good faith, communicate information to a person in accordance with the 'Right to Information Act, 2005' (22 of 2005) and the rules made thereunder.
15. Commit yourself to and uphold the supremacy of the Constitution and democratic values;
16. Defend and uphold the sovereignty and integrity of India, the security of the State, public order, decency and morality;
17. Maintain high ethical standards and honesty;

18. Promote the principles of merit, fairness and impartiality in the discharge of duties;
19. Maintain accountability and transparency;
20. Maintain responsiveness to the public, particularly to the weaker section;
21. Maintain courtesy and good behaviour with the public;
22. Take decisions solely in public interest and use or cause to use public resources efficiently, effectively and economically;
23. Declare any private interests relating to your public duties and take steps to resolve any conflicts in a way that protects the public interest;
24. Make choices, take decisions and make recommendations on merit alone;
25. Act with fairness and impartiality and not discriminate against anyone, particularly the poor and the under-privileged sections of society;
26. Refrain from doing anything which is or may be contrary to any law, rules, regulations and established practices;
27. Maintain discipline in the discharge of your duties and be liable to implement the lawful orders duly communicated to you;
28. Maintain confidentiality in the performance of your official duties as required by any laws for the time being in force, particularly with regard to information, disclosure of which may prejudicially affect the sovereignty and integrity of India, the security of the State, strategic, scientific or economic interests of the State, friendly relation with foreign countries or lead to incitement of an offence or illegal or unlawful gain to any person;
29. Perform and discharge your duties with the highest degree of professionalism and dedication to the best of your abilities.

— Rule 3.

Don'ts.—

1. Do not make joint representations in matters of common interest.
2. Do not indulge in acts unbecoming of a Government servant.
3. Do not be discourteous, dishonest and partial.
4. Do not adopt dilatory tactics in your dealings with the public.
5. Do not convey oral instructions to subordinates. (If done for unavoidable reasons, confirm them in writing as soon as possible.)
6. Do not practise untouchability.
7. Do not associate yourself with any banned organizations.

8. Do not join any association or demonstration whose objects or activities are prejudicial to the interest of the sovereignty and integrity of India, public order or morality.
9. Do not give expression to views on Indian or foreign affairs, while visiting foreign countries.
10. Do not get involved in unauthorized communication of any official document or any part thereof or classified information to any Government servant or any other persons to whom you are not authorized to communicate such document or classified information.
11. Do not join or support any illegal strike.
12. Do not enter into any private correspondence with Foreign Embassies or Missions/High Commissions.
13. Do not accept lavish or frequent hospitality from any individual, industrial or commercial firms, organizations, etc., having official dealings with you.
14. Do not accept any offer of the cost of passage to foreign countries or hospitality by way of free board and lodging there, if such offers are from foreign firms contracting with Government.
15. Do not accept invitations to you and members of your family for free inaugural flights offered by Air India, Indian Airlines Corporation or Foreign Airlines.
16. Do not give or take or abet giving or taking of dowry or demand any dowry directly or indirectly from the parent or guardian of a bride or bridegroom.
17. Do not accept any gift from any foreign firm which is having official dealings.
18. Do not engage yourself in canvassing business of Life Insurance Agency, Commission Agency or Advertising Agency owned or managed by the members of your family.
19. Do not lend money to or borrow money from or deposit money as a member or agent, with any person, firm or private company with whom you are likely to have official dealings. Do not otherwise place yourself under pecuniary obligation with such person, firm or private company.
20. Do not approach your subordinates for standing surety for loans taken from private sources either by you/your relations/friends.
21. Do not undertake private consultancy work.